

CHAPTER IX.

Traversing Note.

Another mode of proceeding, which the Plaintiff may adopt, if, after the appearance the Defendant neglect to answer, is under the following Order :—

At the expiration of the time allowed to a defendant to answer or demur (not demurring alone) to any original bill or bill amended before answer, if such defendant have filed no answer or demurrer, the plaintiff may file a note to the following effect : “ The plaintiff intends to proceed with his cause as if the defendant had filed an answer traversing the case made by the bill.”

A traversing note having been filed, a copy thereof shall be served on the defendant against whom the same shall be filed, and thereupon such note shall have the same effect as if such defendant had filed an answer traversing the whole bill on the day on which such note shall be filed.

After service of a copy of a traversing note, filed as aforesaid, a defendant is not at liberty to answer or demur to a bill without the special leave of the Court ; and the cause is to stand in the same situation as if such defendant had filed an answer to the bill on the day on which the note was filed.

Where a demurrer to the whole bill is overruled, the plaintiff may immediately file his note in manner and with the effect hereinbefore directed, unless the Court, upon overruling such demurrer, give time to the defendant to answer or demur ; and in such case, if the defendant shall file no answer or demurrer within the time so allowed by the Court, the plaintiff may, on the expiration of such time, file such note.

1850.
XXXII.
Traversing
note.

Form.

Copy to be
served.

Same effect as
answer.

In case of
demurrer over-
ruled.